
Journal

1992 PLD 14

Court

SUPREME COURT OF AZAD JAMMU & KASHMIR

Date

1991-11-24

Appeal No.

CRIMINAL APPEAL NO. 14 OF 1991

Judge

SARDAR SAID MUHAMMAD KHAN, CJ. AND BASHARAT AHMED SHEIKH

Parties

MUHAMMAD BASHIR (APPELLANT) VERSUS THE STATE RESPONDENT

Lawyers

CH. MUHAMMAD SHARIF TARIQ, ADVOCATE FOR APPELLANT. NEMO FOR THE STATE.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - S.497/498 PENAL CODE (XLV OF 1860) -
S.307/147/148/149/34 CRIMINAL PROCEDURE CODE (V OF 1898) - S.497

Judgment

BASHARAT AHMED SHEIKH, J.-This appeal relates to a bail matter. The Shariat Court disposed of a revision petition as well as a reference by its order, dated 11-6-1991. The Shariat Court has granted bail to Maqbool Hussain a co-accused of the appellant Muhammad Bashir and has also held that the order passed by a Tehsil Criminal Court on a bad application is only revisable by the Shariat Court and the District Criminal Court has no jurisdiction in the matter.

2 The occurrence in the case took place at 10.00 a.m. on 28th May 1991. Two counter F.I.Rs. were lodged with Police Station Chowki with regard to the incident; one by Abdul Hamid and the other by aforesaid Maqbool Hussain. In the F.I.R. lodged by Abdul Hamid (No.25 of 1991) it is stated that complainant Abdul Hamid and one Mushtaq Ahmad were passing near the pavezard in village Pol when they found Muhammad Bashir, Maqbool Hussain and other accused persons sitting on the way. Appellant Muhammad Bashir, Muhammad Riaz-A Muhammad Azam and Ali Ahmad had guns with them while the remaining accused were armed with sticks. All of them launched attack on complainant Abdul Hamid and his companion Mushtaq Ahmad who were fired at by Muhammad Bashir, Muhammad Riaz and Muhammad Azam. Mushtaq Ahmad received fire-arm injuries by the shots fired by Muhammad Bashir and Muhammad Azam. The remaining accused inflicted injuries on him with sticks. The accused persons are stated to have carried Abdul Hamid and Mushtaq Ahmad to the house of the appellant, Muhammad Bashir, where they were detained in a room. On this report a case was registered under sections 307, 147, 148, 149 and 34, P.P.C. and section 15 of the Islamabad Tazeerati Quaneen Nifaz Act. A case under the same sections was also registered against Abdul Hamid and Mushtaq Ahmad on the counter-report lodged by Maqbool Hussain but the present appeal does not relate to that case.

The Tehsil Criminal Court granted bail to the other accused persons but rejected the application to the extent of the appellant Muhammad Bashir and Maqbool Hussain by its order passed on 11-6-1991. The order passed by the Tehsil Criminal Court was called in question by Muhammad Bashir and Maqbool Hussain by filing an appeal before the District Criminal Court, Mirpur. The learned members of the learned District Criminal Court, however, took note of the fact that there were conflicting judgments of the Shariat Court as to the jurisdiction of the District Criminal Court in bail matters. The matter was referred to the Shariat Court for adjudication of the point. In view of the situation Muhammad Bashir and Maqbool Hussain also filed a revision petition challenging the order of rejection of their bail by the Tehsil Criminal Court. As already noted, a learned Single Judge of the Shariat Court has disposed of both the matters by the order under appeal.

4. Apart from pleading that the appellant has granted bail, it was contended by Ch. Muhammad Sharif Tariq, the learned counsel for the appellant, that the Shariat Court has wrongly decided the reference sent to it by the District Criminal Court and thereby the appellant has been deprived of a valuable right to move the District Criminal Court for obtaining his release on bail. He contended that the District Criminal Court has been vested with the same jurisdiction as is vested in a Sessions Judge by virtue of section 8 of the AJ&K Shariat Court Ordinance and, therefore, the powers given under section 498, Code of Criminal Procedure are exercisable by the District Criminal Court. He submitted that the scheme incorporated in the Code of Criminal Procedure in respect of bail matters is fully applicable to bail matters arising out of cases under Islamabad Tazeerati Quaneen Nifaz Act and the other allied laws. Nobody has appeared on behalf of the State with the result that we have had no assistance from the other side.

5. We may first take up the law point regarding the jurisdiction of the District Criminal Court about which there are conflicting judgments of the Shariat Court. One view has been expressed by S.Z. Choudhri, J. in *State v Azhar Mahmood* 1989 PCr.U 1640 which has been followed by him in the

present case. The view is that the District Criminal Court has no jurisdiction to entertain an appeal against an order passed by the Tehsil Criminal Court on a bail application and such order could only be challenged by filing a revision in the Shariat Court. The other view was expressed by Sardar Muhammad Ashraf Khan, J. in an unreported case entitled *Zulfiqar Ahmad v. The State*, decided on 22-3-1989, at Mirpur. The facts were that the Additional Tehsil Criminal Court, Mirpur had rejected the bail application of Zulfiqar Ahmad and another and they challenged that order by filing a revision petition in the Shariat Court. The revision petition was dismissed on the ground that the accused persons should have moved the District Criminal Court for grant of bail.

6. It is not known whether the judgment of S.Z. Choudri, J. in *Azhar Mahmood's* case mentioned above was brought to the notice of Sardar Muhammad Ashraf Khan, J. It is also not known whether Zulfiqar Ahmad and another filed their revision petition before the Shariat Court instead of moving the District Criminal Court, which was the normal course, in obedience to the dictum of S.Z. Choudri, J. However, it is clear that the judgment in *Azhar Mahmood's* case had been pronounced by S.Z. Choudri, J. on 24th of December 1988. Needless to say the divergence of opinion has caused a great deal of hardship.

7. A perusal of the judgment of S.Z. Choudri, J. shows that the view expressed by the learned Judge is based on the interpretation of section 25 of the *Island Tazeerati Quaneen Nifaz Act* in its amended form as it existed when the judgment was pronounced in December 1988. Subsection (2) of section 25 after amendment of 1986 reads as follows:- 8. In para. 10 of the judgment S.Z. Choudri, J. reached the following conclusion:- "10. Under subsection (2) of section 25 of the Amendment Act of 1986 appeals against acquittal orders by the Tehsil Criminal Court could be filed in the Shariat Court within 6 months while the forum for appeals against conviction order was the District Criminal Court. Interim orders or the decisions of the Tehsil Criminal Court could be challenged only through a revision petition before the Shariat Court." [Underlining is ours].

9. The underlined sentence reproduced above is clearly applicable to, inter alia, orders passed on bail applications and it is held therein that such orders can only be challenged through a revision petition. Thus, it was, by necessary implication, laid down that the District Criminal Court could not treat the appeal filed with it as a bail application or to entertain a bail application.

10. On the other hand the view of Sardar Muhammad Ashraf Khan, J. is that under section 498, Cr.P.C. the District Criminal Court has the power of granting bail to a person who has been refused bail by the Tehsil Criminal Court. The brief order may be usefully reproduced as below:-- "In my opinion the petitioners in the first instance, ought to have moved the District Criminal Court, Mirpur for grant of their bail as under section 498, Cr.P.C. the District Criminal Court has the same powers in the matter of grant of bail as this Court possesses under the said section. It may be stated here that the District Criminal Court, Mirpur has the same powers under law as are vested in the Sessions Judge under the Criminal Procedure Code. Therefore, this application is dismissed. However, the petitioners are at liberty to file the fresh application for bail to the District Criminal Court." [Underlining is ours].

11. Although it is not so mentioned the obvious reference in the underlined sentence is to section 8 of the *AJ&K Shariat Court Ordinance* which is worded as below:-- "8. The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), shall apply mutatis mutandis, in respect of cases under this Ordinance: Provided that in the said Code the words "High Court, Sessions Court and Magistrate First Class wherever occurring, shall be construed to mean the Azad Jammu and Kashmir Shariat Court, District Criminal Court, and Tehsil Criminal Court, as the case may be, for the purposes of this Ordinance." 12. Section 8 reproduced above was considered by S.Z. Choudri, J. in paragraph 13 of the judgment in *Azhar Mahmood's* case.

The para, is to the following effect: "13. The question needing resolution is as to whether this Court has the revisional powers available to it as provided under the provisions contained in the Criminal Procedure Code. Section 8 of the Azad Jammu and Kashmir Shariat Court Ordinance provides a complete answer to the proposition which reads:- This legal position is not disputed by the learned Advocates for the parties either." 13. In this paragraph the learned Single Judge clearly laid down that the powers of revision vested in the High Court under the Code of Criminal Procedure are available to the Shariat Court on the strength of section 8 of the Shariat Court Ordinance. It appears that it escaped the attention of S.Z. Choudhri, J. that if powers of revision given in the Code of Criminal Procedure are conferred on the Shariat Court by section 8 then this section also confers all the powers of a Sessions Judge as conferred in the Code on the District Criminal Court. These powers also include the power of granting or cancelling of bail. This is precisely what has been held in the judgment of Sardar Muhammad Ashraf Khan, J. in Zulfiqar Ahmad's case.

14. The scheme of the Code of Criminal Procedure, in respect of bail matters, is contained in sections 497 and 498. The trial Court can release a person on bail but cannot accept pre-arrest bail. The High Court and the Sessions Court have been authorised to grant bail in any case. The powers granted to these Courts can be exercised co-extensively. No such scheme is incorporated in the Islami Tazeerati Quaneen Nifaz Act. This Act does not lay down that the Shariat Court or the District Criminal Court shall have the power of granting pre-arrest bail or that these Courts would be authorised to grant bail in any case which may not be pending with it. Section 32 of the Act does lay down that where a specific provision is not made in respect of any matter in that Act then in respect of that matter Code of Criminal Procedure would apply but Code does not make any mention of the Shariat Court or the Sessions Judge. It is for this purpose that section 8 of the Shariat Court Ordinance, reproduced above, has been enacted. This section adequately meets the requirement of providing the necessary linkage. It is clear that the scheme of the Code of Criminal Procedure in respect of bail matters is thus fully applicable to the cases of the Islami Tazeerati Quaneen Nifaz Act. Therefore, the view expressed by Sardar Muhammad Ashraf Khan, J. correctly lays down the law on the subject.

15. The result which follows is that the reference made by the District Criminal Court to the Shariat Court was wrongly answered. The Shariat Court should have directed the District Criminal Court to decide the bail matter of Muhammad Bashir and Maqbool Hussain in accordance with law. We should have ordinarily passed the same order but the Shariat Court £ has already dealt with the merits of the case in the judgment under appeal. Since the Shariat Court has concurrent jurisdiction under section 498, Cr.P.C.

in bail matters the order under appeal is deemed to be competently made. In these circumstances the case cannot be remanded to the District Criminal Court.

16 Coming to the merits of the case, the learned counsel for the appellant has not been able to show that the Shariat Court has exercised its discretion in a manner which may need our interference. All other accused persons who were arrested have been released on bail. The case of Muhammad Bashir is distinguishable from the case of other co-accused persons who have been so released. He has been attributed fire-arm injury. The prosecution case is supported by the eye-witnesses and recovery of the crime weapon. These factors, prima facie, connect the appellant with the alleged offence. Therefore, there is no merit in bail application of Muhammad Bashir at the present stage. However, he may renew his prayer for bail if any circumstances favourable to him appear after recording of some evidence in the case.

N.H.Q./311/S.CA. Bail refused-

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